



INDIAN POLITY

HIGH COURTS

MODULE – 77



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HIGH COURTS

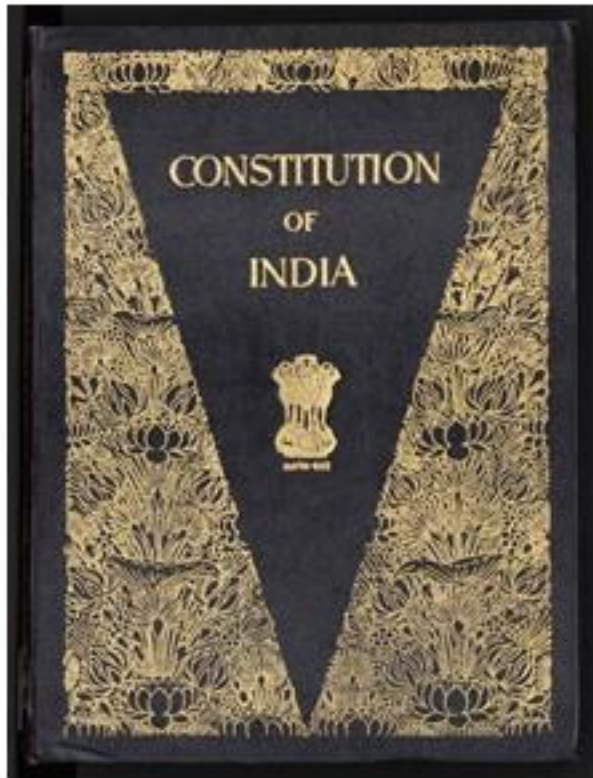
INTRODUCTION



- 1 In the Indian single integrated judicial system, the high court operates below the Supreme Court but above the subordinate courts.
- 2 The judiciary in a state consists of a high court and a hierarchy of subordinate courts.
- 3 The high court occupies the top position in the judicial administration of a state.

HIGH COURTS

INTRODUCTION



4 The Constitution of India provides for a high court for each state, but the **Seventh Amendment Act of 1956** authorized the Parliament to establish a common high court for two or more states or for two or more states and a union territory.

5 The territorial jurisdiction of a high court is **co-terminus with the territory of a state**.

6 Similarly, the territorial jurisdiction of a common high court is **co-terminus with the territories of the concerned states and union territory**.

APPOINTMENT OF JUDGES

- The judges of a high court are appointed by the President.
- The chief justice is appointed by the President after consultation with the chief justice of India and the governor of the state concerned.
- For appointment of other judges, the chief justice of the concerned high court is also consulted.
- In case of a common high court for two or more states, the governors of all the states concerned are consulted by the president.

ORGANISATION OF HIGH COURT

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- 1 The Constitution does not specify the strength of a high court and leaves it to the discretion of the president.
 - 2 Accordingly, the President determines the strength of a high court from time to time depending upon its workload.

NOTE: While reading the modules of HC, it is advised to compare the same with the lectures on SC for a comprehensive understanding.

HIGH COURTS

QUALIFICATIONS OF JUDGES

A person to be appointed as a judge of a high court, should have the following qualifications:

- 1** He should be a citizen of India.



- 2**
 - a) He should have held a judicial office in the territory of India for ten years; or
 - b) He should have been an advocate of a high court (or high courts in succession) for ten years.

- *From the above, it is clear that the Constitution has not prescribed a minimum age for appointment as a judge of a high court.*
- *Moreover, unlike in the case of the Supreme Court, the Constitution makes no provision for appointment of a distinguished jurist as a judge of a high court.*

OATH (Or) AFFIRMATION

1

To bear true faith and allegiance to the Constitution of India;

2

To uphold the sovereignty and integrity of India.

3

To duly and faithfully and to the best of his ability, knowledge and judgment perform the duties of the Office without fear or favor, affection or ill-will.

4

To uphold the Constitution and the laws.

TENURE OF JUDGES

The Constitution has not fixed the tenure of a judge of the High Court. However, it makes the following three provisions in this regard:

1. He holds office until he attains the age of 62 years. Any questions regarding his age is to be decided by the president after consultation with the chief justice of India and the decision of the president is final.
2. He can resign his office by writing to the president.
3. He can be removed from his office by the President on the recommendation of the Parliament.
4. He vacates his office when he is appointed as a judge of the Supreme Court or when he is transferred to another high court.

HIGH COURTS

REMOVAL OF JUDGES

A Judge of a high court can be removed in the same manner and on the same grounds as a judge of the Supreme Court.



1

A judge of the High Court can be removed from his Office by an order of the president.

2

The President can issue the removal order only after an address by Parliament has been presented to him in the same session for such removal.

3

The address must be supported by a special majority of each House of Parliament.

4

The grounds of removal are two—proved misbehaviour or incapacity.

HIGH COURTS



HIGH COURTS

OTHER APPOINTMENTS THAT CAN BE MADE IN HIGH COURT

SALARIES & ALLOWANCES

The salaries, allowances, privileges, leave and pension of the judges of the Supreme Court are determined from time to time by the Parliament.

TRANSFER OF JUDGES

- The **President** can transfer a judge from one high court to another after consulting the Chief Justice of India.
- On transfer, he is entitled to receive in addition to his salary such compensatory allowance as may be determined by Parliament.
- Could be resorted to only as an exceptional measure and only in public interest and not by way of punishment.

HIGH COURTS

OTHER APPOINTMENTS THAT CAN BE MADE IN HIGH COURT



ACTING CHIEF JUSTICE

The **President** can appoint a judge of the High Court as an acting Chief Justice of High Court when:

1. The office of Chief Justice of the High Court is vacant; or
2. The Chief Justice of the High Court is temporarily absent; or
3. The Chief Justice of the High Court is unable to perform the duties of his office.

HIGH COURTS

OTHER APPOINTMENTS THAT CAN BE MADE IN HIGH COURT

ADDITIONAL JUDGES

The **President** can appoint duly qualified persons as additional judges of a high court for a temporary period not exceeding two years when:

1. There is a temporary increase in the business of the high court; or
2. There are arrears of work in the high court.

ACTING JUDGES

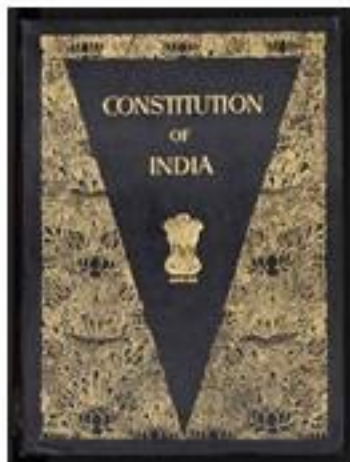
The **President** can also appoint a duly qualified person as an acting judge of a high court when a judge of that high court (other than the chief justice) is:

1. Unable to perform the duties of his office due to absence or any other reason; or
2. Appointed to act temporarily as chief justice of that high court

An acting judge holds office until the permanent judge resumes his office. However, both the additional or acting judge cannot hold office after attaining the age of 62 years.

HIGH COURTS

OTHER APPOINTMENTS THAT CAN BE MADE IN HIGH COURT



RETIRED JUDGES

- At any time, the chief justice of a high court of a state can request a retired judge of that high court or any other high court to act as a judge of the high court of that state for a temporary period.
- He can do so only with the previous consent of the President and also of the person to be so appointed.
- Such a judge is entitled to such allowances as the President may determine.
- He will also enjoy all the jurisdiction, powers and privileges of a judge of that high court.
- But, he will not otherwise be deemed to be a judge of that high court.

HIGH COURTS

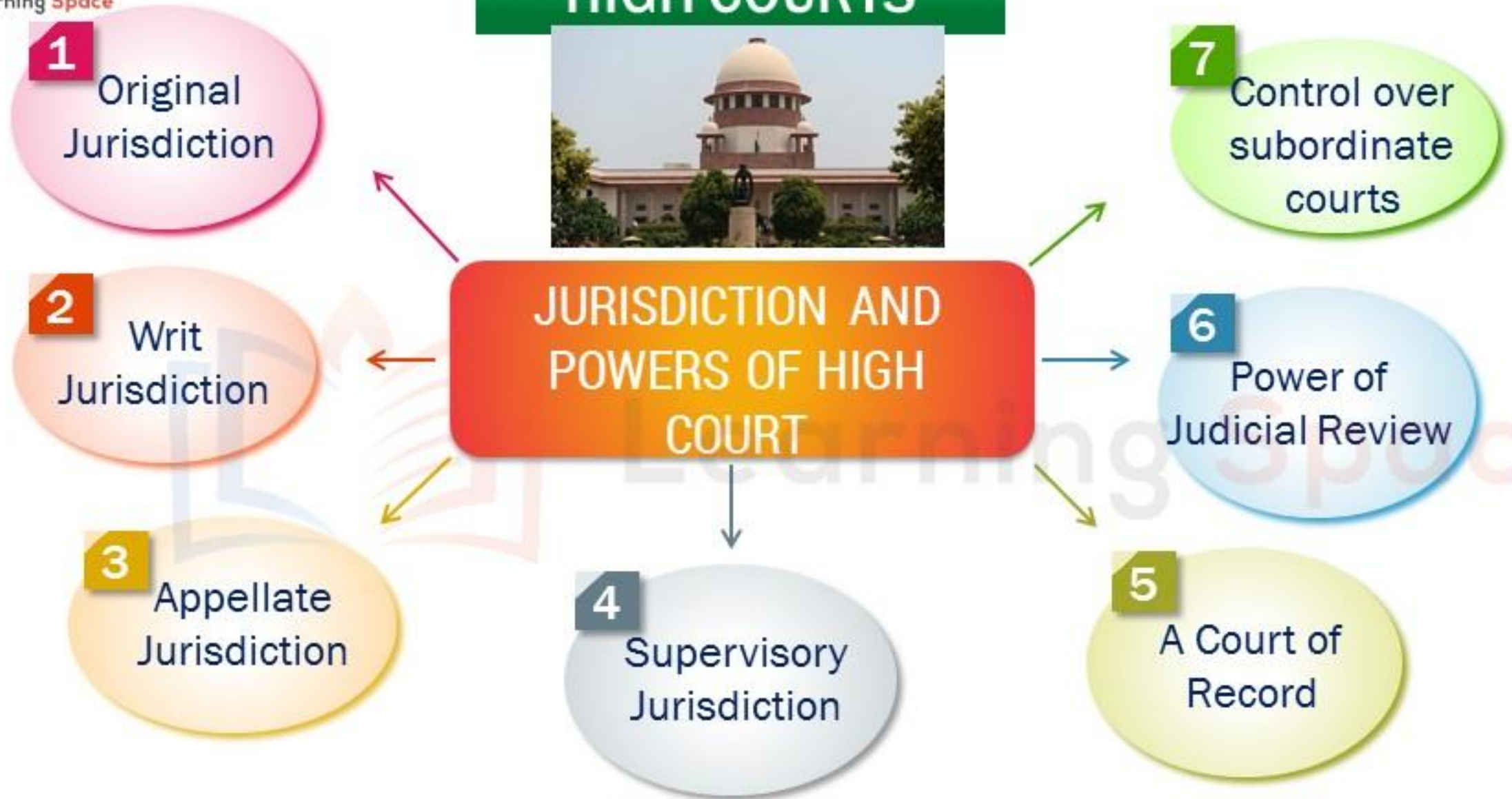
INDEPENDENCE OF HIGH COURT

The Constitution has made the following provisions to safeguard and ensure the independent and impartial functioning of the High Court:

- 1 *Mode of appointment*
- 2 *Security of Tenure*
- 3 *Fixed Service Conditions*
- 4 *Expenses Charged on Consolidated Fund*
- 5 *Conduct of Judges cannot be Discussed*

- 6 *Ban on Practice after Retirement*
- 7 *Power to Punish for its Contempt*
- 8 *Freedom to Appoint its Staff*
- 9 *Its Jurisdiction cannot be Curtailed*
- 10 *Separation from Executive*

HIGH COURTS



Constitution empowers the Parliament and the state legislature to change the jurisdiction and powers of a high court.

HIGH COURTS

ORIGINAL JURISDICTION

It means the power of a high court to hear disputes in the first instance, not by way of appeal. It extends to the following:

- 1 Matters of admiralty, will, marriage, divorce, company laws and contempt of court.
- 2 Disputes relating to the election of members of Parliament and state legislatures.
- 3 Regarding revenue matter or an act ordered or done in revenue collection.
- 4 Enforcement of fundamental rights of citizens.
- 5 Cases ordered to be transferred from a subordinate court involving the interpretation of the Constitution to its own file.
- 6 The four high courts (i.e., Calcutta, Bombay, Madras and Delhi High Courts) have original civil jurisdiction in cases of higher value.



In the Chandra Kumar case (1997), the Supreme Court ruled that the writ jurisdiction of both the high court and the Supreme Court constitute a part of the basic structure of the Constitution.

HIGH COURTS

CRIMINAL MATTERS

Appeals from the judgements of sessions court and additional sessions court lie to the high court if the sentence is one of imprisonment for more than seven years.

A death sentence awarded by a sessions court should be confirmed by the high court before it can be executed, whether there is an appeal by the convicted person or not

In some cases specified in various provisions of the CrPC the appeals from the judgements of the metropolitan magistrate lie to the high court.

APPELLATE JURISDICTION



CIVIL MATTERS

First appeals from the subordinate courts lie directly to the high court, on both questions of law and fact.

Second appeals lie to the high court in the cases involving questions of law only and not questions of fact.

The Calcutta, Bombay and Madras High Courts have provision for intracourt appeals.

When a single judge of the high court has decided a case an appeal from such a decision lies to the division bench of the same high court.

Appeals from the decisions of the administrative and other tribunals lie to the division bench of the state high court.

HIGH COURTS

SUPERVISORY JURISDICTION

A high court has the power of superintendence over all courts and tribunals functioning in its territorial jurisdiction (except military courts or tribunals).

- *It is an extraordinary power and hence has to be used most sparingly.*
- *Usually, it is limited to excess of jurisdiction, gross violation of natural justice, error of law etc.*

This power of superintendence of a high court is very broad because,

- i. It extends to all courts and tribunals whether they are subject to the appellate jurisdiction of the high court or not;
- ii. It covers not only administrative superintendence but also judicial superintendence;
- iii. It can be suo-motu (on its own) and not necessarily on the application of a party.

HIGH COURTS

CONTROL OVER SUBORDINATE COURTS

In addition to its appellate jurisdiction and supervisory jurisdiction over the subordinate courts as mentioned above, a high court has an administrative control and other powers over them.

- 1 It is consulted by the governor in the matters of appointment, posting and promotion of district judges and in the appointments of persons to the judicial service of the state.



- 2 It deals with the matters of posting, promotion, grant of leave, transfers and discipline of the members of the judicial service of the state.
- 3 It can withdraw a case pending in a subordinate court if it involves a substantial question of law that require the interpretation of the Constitution.
- 4 Its law is binding on all subordinate courts.

HIGH COURTS

CONTEMPT OF COURT

A COURT OF RECORD

The judgements, proceedings and acts of the Supreme Court are recorded for perpetual memory and testimony. These records are admitted to be of evidentiary value and cannot be questioned when produced before any court.

It has power to punish for contempt of court



Civil contempt means willful disobedience to any judgment, order, writ or other process of a court or willful breach of an undertaking given to a court.

Criminal contempt means the publication of any matter or doing an act which—

- Scandalises or lowers the authority of a court; or
- Prejudices or interferes with the due course of a judicial proceeding; or
- Interferes or obstructs the administration of justice in any other manner.

However, innocent publication and distribution of some matter, fair and accurate report of judicial proceedings, fair and reasonable criticism of judicial acts and comment on the administrative side of the judiciary do not amount to contempt of court.

HIGH COURTS

POWER OF JUDICIAL REVIEW



Judicial review is the power of the High Court to examine the constitutionality of legislative enactments and executive orders of both the Central and state governments.

On examination, if they are found to be violative of the Constitution (ultra-vires), they can be declared as illegal, unconstitutional and invalid (null and void) by the High Court.

Though the phrase 'judicial review' has nowhere been used in the Constitution, the provisions of Articles 13 and 226 explicitly confer the power of judicial review on a high court

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